

LDBC

Collaborative Project

FP7 – 317548

D6.6.1 Incorporation of the LDBC non-profit entity

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Reviewed by all project partners

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Executive summary

This report gives provides details on the incorporation of a non-profit legal entity for LDBC. This legal entity will outlive the LDBC EU project, and is open for membership beyond the initial EU project partners.

The consortium, after some deliberation, resolved to create a “Company Limited By Guarantee” in the United Kingdom. Such a company is the usual legal form for a non-profit cooperation entity between commercial partners. Such a company has no shareholders, but members. Profits (only really at liquidation) go to a beneficiary aim, not to shareholders or members. The “limited by guarantee” nature of the corporation limits the liability of members to a very low amount (£5, in this case).

The reason to incorporate in the United Kingdom is that due to the international character of LDBC it is important to have all legal documents in English. The content of the legal documents is quite relevant and will always be studied first by aspiring members, since an industry council can easily lead into situations where various members have conflicting interests. Hence decision making and conflict resolution procedures must be well described, and these are contained in legal text.

This deliverable consists of the Articles of Association of the LDBC company. This deliverable, consists of the Articles of Association of the LDBC company. Its salient points are:

- In a company limited by guarantee there are not shareholders, but members (legal entities)
 - Members appoint directors (persons) to govern the company, in this case every member names exactly one director.
 - Membership application needs a board of directors approval.
 - Non-payment of the membership dues after a period leads to automatic membership termination.
- The board of directors have meetings, which can be (typically will be) conference calls, with a quorum of one third, and decisions take by absolute majority.
 - There will be a Chairman and Vice-Chairman. Meetings can also be held without their presence, with enough quorum; but in practice they will be responsible for organizing, and chairing meetings, as well as keeping and distributing meeting notes.
- Directors govern the company, only very important decisions, like modification of the Articles, but also the adoption/change/retirement of benchmarks are to taken by member decision
 - Benchmark decisions are made by written resolution, i.e. a physical meeting is not required, and all members get to vote in an ample period of time. An absolute majority of members need to approve such a decision for it to take hold.
- LDBC has 3 types of members: company members, non-profit members and individual members.
 - The existence of non-profit members is intended to allow reduced fees for non-profit organizations.
 - Individual members allow valuable individuals who may work for an organization unwilling to become a member to still participate.
 - Because LDBC is in spirit a council for organizations in the graph and RDF data management technology markets, such individual members do not share the roles and responsibilities of the other members and therefore the individual members are not allowed to vote on benchmark adoption. As such individual members, being directors, can influence the actions and processes at LDBC, but do not have final voting rights.
 - Individual membership expires after two years, after which they can re-apply to be members. The spirit of this rule is that individual members (directors) should bring value to the LDBC.

This deliverable was delayed, due to the legal reviewing of various versions of the articles, and a subsequent delay due to the transfer of the EU project budget for legal cost from one partner to the other.

In Y2, the directors of the LDBC company will adopt bylaws that describe practical aspects like the tasks of board members, and fees (though the intent is to keep the fees at zero for 2014, using the leftover of the legal budget to fund the LDBC company initially).

Moreover these bylaws will describe the methods and guidelines for benchmark development, benchmark reporting (e.g. price reporting), auditor training, auditing and conflict resolution. The mandate for adopting such bylaws lies formally with the LDBC company, as governed by its directors. It is important to understand that, given the fact that LDBC company will acquire outside (non-EU project) members, this process is by definition not fully controllable by the EU project. Yet of course, the EU project partners initially will be a majority and will have strong influence.

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Abstract (for dissemination)	This deliverable documents the incorporation of a UK company limited by guarantee, which will be the legal entity of the LDBC non-profit organization.
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1 Articles of Association

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The initial members of the LDBC at foundation are Sparsity (company member) and Peter Boncz (individual member). This is for reasons of practicality, and limiting couriers around documents with signatures on them. On or before the second TUC meeting, November 19 (London), Ontotext, OpenLink Software and Neo Technologies plan to become company members. FORTH has the intent of becoming the first non-profit member, shortly thereafter. The universities (TUM University Munich, and VU University Amsterdam) are big organizations not easily convinced to become member of such. We do not regard this as an issue.

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THE COMPANIES ACTS 2006
PRIVATE COMPANY LIMITED BY GUARANTEE

MEMORANDUM AND ARTICLES OF ASSOCIATION

OF

LINKED DATA BENCHMARK COUNCIL

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THE COMPANIES ACT 2006
PRIVATE COMPANY LIMITED BY GUARANTEE
MEMORANDUM OF ASSOCIATION
OF
LINKED DATA BENCHMARK COUNCIL

Each subscriber to this memorandum of association wishes to form a company under the Companies Act 2006 and agrees to become a member of the company.

Name of each subscriber	Authentication by each subscriber
PETER ALEXANDER BONCZ	
SPARSITY SOCIEDAD LIMITADA	 Director/Authorised Signatory

Dated..... 2013



THE COMPANIES ACT 2006
PRIVATE COMPANY LIMITED BY GUARANTEE
ARTICLES OF ASSOCIATION
OF
LINKED DATA BENCHMARK COUNCIL

- 1. The Company's name is Linked Data Benchmark Council**
(and in this document it is called the "Company").

2. INTERPRETATION

- 2.1. In the articles:

"address"	means a postal address or, for the purposes of electronic communication, a fax number, an e-mail or postal address or a telephone number for receiving text messages in each case registered with the Company;
"Affiliate"	means in relation to a body corporate, any subsidiary, subsidiary undertaking or holding company of such body corporate and any subsidiary or subsidiary undertaking of any such holding company for the time being;
"the Articles"	means the company's articles of association;
"the Company"	means the company intended to be regulated by the articles;
"clear days"	in relation to the period of a notice means a period excluding:



	- the day when the notice is given or deemed to be given; and - the day for which it is given or on which it is to take effect
"Companies Acts"	means the Companies Acts (as defined in Section 2 of the Companies Act 2006) insofar as they apply to the company;
"the Directors"	means the directors of the Company;
"Document"	includes, unless otherwise specified, any document sent or supplied in electronic form;
"Electronic form"	has the meaning given in section 1168 of the Companies Act 2006;
"the Memorandum"	means the company's memorandum of association;
"Officers"	includes the Directors and the secretary (if any);
"the Seal"	means the common seal of the Company if it has one;
"Secretary"	means any person appointed to perform the duties of the secretary of the Company; and
"the United Kingdom"	means Great Britain and Northern Ireland.

2.2. Words importing one gender shall include all genders, and the singular includes the plural and vice versa.

2.3. A reference to a holding company or a subsidiary means a holding company or a subsidiary (as the case may be) as defined in section 1159 of the Companies Act 2006 and a company shall be treated, for the purposes only of the membership requirement contained in sections 1159(1)(b) and (c), as a member of another company even if its shares in that other company are registered in the name of



(a) another person (or its nominee) by way of security or in connection with the taking of security, or (b) its nominee. In the case of a limited liability partnership which is a subsidiary of a company or another limited liability partnership, section 1159 of the Companies Act 2006 shall be amended so that: (a) references in sections 1159(a) and (c) to voting rights are to the members' rights to vote on all or substantially all matters which are decided by a vote of the members of the limited liability partnership; and (b) the reference in section 1159(1)(b) to the right to appoint or remove a majority of its board of directors is to the right to appoint or remove members holding a majority of the voting rights.

- 2.4. Unless the context otherwise requires words or expressions contained in the articles have the same meaning as in the Companies Acts but excluding any statutory modification not in force when this constitution becomes binding on the company.
- 2.5. Apart from the exception mentioned in the previous paragraph, a reference to an Act of Parliament includes any statutory modification or re-enactment of it for the time being in force.

3. LIABILITY OF MEMBERS

- 3.1. The liability of the members is limited.
- 3.2. Every member of the Company promises, if the Company is dissolved while it is a member or within twelve months after it ceases to be a member, to contribute such sum (not exceeding £5) as may be demanded of it towards the payment of the debts and liabilities of the Company incurred before it ceases to be a member, and of the costs, charges and expenses of winding up, and the adjustment of the rights of the contributories among themselves.

4. OBJECTS

The Company is established for the following purposes: ('the Objects')

- (a) To develop, maintain and evolve credible industry benchmarks for graph and RDF database systems which enable users of information technology to better compare graph and RDF technology products and competing technologies such as (but not limited to) relational database systems.



- (b) To encourage innovation in graph and RDF technology by providing industry standards which can measure improvements.
- (c) To bring together persons involved in graph and RDF data management technology to provide a forum for the development of benchmarks and exchange of information about benchmark results.
- (d) To do all such other things as are necessary for the attainment of the above Objects or any of them.

5. POWERS

The Company has power to do anything which is calculated to further its Object(s) or is conducive or incidental to doing so. In particular, the Company has power:

- 5.1. to raise funds;
- 5.2. to buy, take on lease or in exchange, hire or otherwise acquire any property and to maintain and equip it for use;
- 5.3. to sell, lease or otherwise dispose of all or any part of the property belonging to the Company;
- 5.4. to borrow money and to charge the whole or any part of the property belonging to the Company as security for repayment of the money borrowed or as security for a grant or the discharge of an obligation;
- 5.5. to co-operate with other not for profit organisations, trade associations, voluntary bodies and statutory authorities and to exchange information and advice with them;
- 5.6. to acquire, merge with or to enter into any partnership or joint venture arrangement with any other organisation;
- 5.7. to employ and remunerate such staff as are necessary for carrying out the work of the Company;
- 5.8. to provide indemnity insurance for the Directors.

6. MEMBERS



- 6.1. The subscribers to the memorandum are the first members of the company.
- 6.2. Membership is open to other organisations or individuals who or which:
 - 6.2.1. are involved in the research, development, sales, support deployment or use of graph and RDF data management systems or the hardware which runs those systems;
 - 6.2.2. if organisations, are not an Affiliate of a person who is a member at the time of application; and, if individuals, are not an officeholder or employee of a person who is a member or Affiliate of a person who is a member in each case at the time of application;
 - 6.2.3. apply to the company in the form required by the directors;
 - 6.2.4. are approved by the directors.
- 6.3. The directors may accept or refuse an application for membership as they shall in their discretion think fit.
- 6.4. An individual whose membership is automatically terminated in accordance with article 9.2 shall be entitled to re-apply for membership.
- 6.5. Membership is not transferable.
- 6.6. The directors must keep a register of names and addresses of the members and shall publish details of the members on its website.

7. CLASSES OF MEMBERSHIP

- 7.1. There shall be three classes of membership: one class for individuals; another for commercial organisations and the third for not for profit organisations. They shall each have the same rights and obligations save as set out in articles 8.1, 9, and 13.1.
- 7.2. The rights attached to a class of membership may only be varied if:
- 7.3. Three-quarters of the members of that class consent in writing to the variation; or



- 7.4. A special resolution is passed at a separate general meeting of the members of that class agreeing to the variation; and
- 7.5. Three-quarters of the members of the company pass a written resolution or a special resolution is passed at a general meeting of the members
- 7.6. The directors may not directly or indirectly alter the rights or obligations attached to a class of membership.
- 7.7. The provisions in the articles about general meetings shall apply to any meeting relating to the variation of the rights of any class of members.

8. SUBSCRIPTIONS

- 8.1. Every member shall pay to the company in advance such annual subscription as shall be fixed by the Directors and such subscription shall be due and payable on receipt of an invoice in January each year. The Directors may fix different levels of annual subscription for the different classes of membership. New members shall pay the subscription pro rata to the period of time from becoming a member to 31 December in the year in which they become a member. The subscription shall be due and payable within three months of the date when the member became a member.
- 8.2. No part of the annual subscription shall be refunded to a member whose membership is terminated in accordance with article 9 unless the Directors so decide.
- 8.3. The full amount of the annual subscription for any year will be due unless membership has been terminated on or before 1st January in any year.

9. TERMINATION OF MEMBERSHIP

Membership is terminated if:

- 9.1. the member being an organisation ceases to exist, or being an individual, dies;
- 9.2. the member, being an individual, has been a member for two years and membership shall terminate automatically on the second anniversary of the



member becoming a member;

- 9.3. the member resigns by written notice to the company unless, after the resignation, there would be less than two members, where the date of termination shall be the date of actual receipt by the company of the notice;
- 9.4. any sum due from the member to the company is not paid in full within three months of it falling due;
- 9.5. the member is removed from membership by a resolution passed by two thirds of the total number of directors voting in favour that it is in the best interests of the company that its or his membership is terminated. A resolution to remove a member from membership may only be passed if:
 - 9.5.1. the member has been given at least twenty-one days' notice in writing of the meeting of the directors at which the resolution will be proposed or the date of circulation of a proposed written resolution of the directors and the reasons why the resolution is to be proposed;
 - 9.5.2. the member has been allowed to make representations in writing to the directors.

10. GENERAL MEETINGS

- 10.1. A resolution of the members shall be passed either as a written resolution in accordance with article 12 and the Companies Act or at a meeting of the members to which the provisions of the Companies Acts and the Articles shall apply.
- 10.2. The directors may call a general meeting at any time.

11. PROCEEDINGS AT GENERAL MEETINGS

- 11.1. No business shall be transacted at any general meeting unless a quorum is present.
- 11.2. A quorum is the duly authorised representatives of member organisations excluding individual members together amounting to one third of the total



membership (excluding individual members) at the time present in person or by proxy and entitled to vote upon the business to be conducted at the meeting.

11.3. If:

11.3.1. a quorum is not present within half an hour from the time appointed for the meeting; or

11.3.2. during a meeting a quorum ceases to be present;

the meeting shall be adjourned to such time and place as the directors shall determine.

11.4. The directors must reconvene the meeting and must give at least seven clear days' notice of the reconvened meeting stating the date, time and place of the meeting.

11.5. If no quorum is present at the reconvened meeting within fifteen minutes of the time specified for the start of the meeting the members present in person or by proxy at that time shall constitute the quorum for that meeting.

11.6. General meetings shall be chaired by the person who has been appointed to chair meetings of the directors.

11.7. If there is no such person or he or she is not present within fifteen minutes of the time appointed for the meeting a director nominated by the directors shall chair the meeting.

11.8. If there is only one director present and willing to act, he or she shall chair the meeting.

11.9. If no director is present and willing to chair the meeting within fifteen minutes after the time appointed for holding it, the members present in person or by proxy and entitled to vote must choose one of their number to chair the meeting.



The adjournment of a general meeting, the giving of notice of an adjourned meeting, voting at general meetings, the results of a vote, polls and matters concerning proxies shall all be governed by the provisions of the Companies Acts.

12. WRITTEN RESOLUTIONS

12.1. A resolution in writing agreed by a simple majority (or in the case of a special resolution by a majority of not less than 75%) of the members who would have been entitled to vote upon it had it been proposed at a general meeting shall be effective provided that:

12.1.1. a copy of the proposed resolution has been sent to every eligible member;

12.1.2. a simple majority (or in the case of a special resolution a majority of not less than 75%) of members who have the right to vote has signified its agreement to the resolution; and

12.1.3. it is contained in an authenticated document which has been received at the registered office within the period of 28 days beginning with the circulation date.

12.2. A resolution in writing may comprise several copies to which one or more members have signified their agreement.

12.3. In the case of a member that is an organisation, its authorised representative may signify its agreement.

13. VOTES OF MEMBERS

13.1. Members from the commercial organisations and not for profit organisation classes shall each have one vote. Members from the individual class do not have a right to vote.

13.2. Any objection to the qualification of any voter must be raised at the meeting at which the vote is tendered and the decision of the person who is chairing the meeting shall be final.



13.3.

13.3.1. Any organisation that is a member of the company may nominate any person to act as its representative at any meeting of the company.

13.3.2. The organisation must give written notice to the company of the name of its representative. The representative shall not be entitled to represent the organisation at any meeting unless the notice has been received by the company. The representative may continue to represent the organisation until written notice to the contrary is received by the company.

13.3.3. Any notice given to the company will be conclusive evidence that the representative is entitled to represent the organisation or that his or her authority has been revoked. The company shall not be required to consider whether the representative has been properly appointed by the organisation.

14. DIRECTORS

14.1.1. A director must be a natural person aged 16 years or older.

14.1.2. No one may be appointed a director if he or she would be disqualified from acting under the provisions of article 18.

14.2. The number of directors shall (unless determined by the Company by ordinary resolution) be a minimum of two and a maximum of twenty five.

14.3. The first directors shall be those persons notified to Companies House as the first directors of the company.

14.4. A director may not appoint an alternate director or anyone to act on his or her behalf at meetings of the directors.

15. POWERS OF DIRECTORS

- 15.1. The directors shall manage the business of the company and may exercise all the powers of the company unless they are subject to any restrictions imposed by the Companies Acts, the articles or any special resolution.
- 15.2. No alteration of the articles or any special resolution shall have retrospective effect to invalidate any prior act of the directors.
- 15.3. Any meeting of directors at which a quorum is present at the time the relevant decision is made may exercise all the powers exercisable by the directors.

16. APPOINTMENT OF DIRECTORS

- 16.1. Subject to article 16.2 each member organisation shall be entitled to appoint a director and each individual member shall be entitled to be a director.
- 16.2. The appointment of a director, whether by the company in general meeting or by the other directors, must not cause the number of directors to exceed any number fixed as the maximum number of directors.

17. CHAIRMAN AND VICE-CHAIRMAN

- 17.1. The directors shall appoint one of their number to be the Chairman and another to be the Vice-Chairman both to hold office for a term of three years from the date of their appointment.

18. DISQUALIFICATION AND REMOVAL OF DIRECTORS

A director shall cease to hold office if he or she:

- 18.1. ceases to be a director by virtue of any provision in the Companies Act or is prohibited by law from being a director;
- 18.2. ceases to be connected with a member of the company whether as an employee, shareholder or director;
- 18.3. becomes incapable by reason of mental disorder, illness or injury of managing and administering his or her own affairs;
- 18.4. resigns as a director by notice to the company (but only if at least two directors



will remain in office when the notice of resignation is to take effect); or

- 18.5. is absent without the permission of the directors from all their meetings held within a period of 6 months and the directors resolve that his or her office be vacated.

19. REMUNERATION AND EXPENSES OF DIRECTORS

- 19.1. The directors must not be paid any remuneration.
- 19.2. A director is entitled to be reimbursed reasonable expenses properly incurred by him or her when acting on behalf of the company including the cost of travel, accommodation and subsistence when attending directors meetings.

20. PROCEEDINGS OF DIRECTORS

- 20.1.
- 20.1.1. The directors may regulate their proceedings as they think fit, subject to the provisions of the articles.
- 20.1.2. The Chairman or Vice-Chairman or directors comprising one third of the total number of directors may call a meeting of the directors.
- 20.1.3. Questions arising at a meeting shall be decided by a majority of votes.
- 20.1.4. A meeting may be held by suitable electronic means agreed by the directors in which each participant may communicate with all the other participants.
- 20.1.5. Four weeks' notice in writing of a meeting of directors to take place in person shall be given to each director. One weeks' notice in writing of a meeting to be held by suitable electronic means in accordance with article 20.1.4 shall be given to each director.
- 20.2.
- 20.2.1. No decision may be made by a meeting of the directors unless a quorum is present at the time the decision is purported to be made. 'Present'



includes being present by suitable electronic means agreed by the directors in which a participant or participants may communicate with all the other participants.

20.2.2. The quorum shall be the number nearest to one-third of the total number of directors or such larger number as may be decided from time to time by the directors.

20.2.3. A director shall not be counted in the quorum present when any decision is made about a matter upon which that director is not entitled to vote.

20.3. If the number of directors is less than the number fixed as the quorum, the continuing directors or director may act only for the purpose of filling vacancies or of calling a general meeting.

20.3.1. The Chairman shall chair meetings of directors or in his or her absence the Vice-Chairman.

20.3.2. If Chairman or the Vice-Chairman are unwilling to preside or is not present within ten minutes after the time appointed for the meeting, the directors present may appoint one of their number to chair that meeting.

20.3.3. The person appointed to chair meetings of the directors shall have no functions or powers except those conferred by the articles or delegated to him or her by the directors.

20.4.

20.4.1. A resolution in writing or in electronic form agreed by a simple majority of all the directors entitled to receive notice of a meeting of directors or of a committee of directors and to vote upon the resolution shall be as valid and effectual as if it had been passed at a meeting of the directors or (as the case may be) a committee of directors duly convened and held provided that:

20.4.1.1. a copy of the resolution is sent or submitted to all the directors eligible to vote; and



20.4.1.2. a simple majority of directors has signified its agreement to the resolution in an authenticated document or documents which are received at the registered office within the period of 28 days beginning with the circulation date.

20.4.2. The resolution in writing may comprise several documents containing the text of the resolution in like form to each of which one or more directors has signified their agreement.

21. DELEGATION

21.1. The directors may delegate any of their powers or functions to a committee of two or more directors but the terms of any delegation must be recorded in the minute book.

21.2. The directors may impose conditions when delegating, including the conditions that:

21.2.1. the relevant powers are to be exercised exclusively by the committee to who they delegate;

21.2.2. no expenditure may be incurred on behalf of the company except in accordance with a budget previously agreed with the directors.

21.3. The directors may revoke or alter a delegation.

21.4. All acts and proceedings of any committees must be fully and promptly reported to the directors.

22. DECLARATION OF DIRECTORS' INTERESTS

22.1. A director must declare the nature and extent of any interest, direct or indirect, which he or she has in a proposed transaction or arrangement with the company or in any transaction or arrangement entered into by the company which has not previously been declared. A director must absent himself or herself from any discussions of the directors in which it is possible that a conflict will arise between his or her duty to act solely in the interests of the company and any personal interest (including but not limited to any personal financial interest).



23. CONFLICTS OF INTEREST

23.1. If a conflict of interests arises for a director because of a duty of loyalty owed to another organisation or person and the conflict is not authorised by virtue of any other provision in the articles, the unconflicted directors may authorise such a conflict of interest where the following conditions apply:

23.1.1. the conflicted director is absent from the part of the meeting at which there is discussion of any arrangement or transaction affecting that other organisation or person;

23.1.2. the conflicted director does not vote on any such matter and is not to be counted when considering whether a quorum of directors is present at the meeting; and

23.1.3. the unconflicted directors consider it is in the interests of the company to authorise the conflict of interests in the circumstances applying.

23.2. In this article a conflict of interest arising because of a duty of loyalty owed to another organisation or person only refers to such a conflict which does not involve a direct or indirect benefit of any nature to a director.

24. VALIDITY OF DIRECTORS' DECISIONS

24.1. Subject to article 24.2, all acts done by a meeting of directors, or of a committee of directors, shall be valid notwithstanding the participation in any vote of a director:

24.1.1. who was disqualified from holding office;

24.1.2. who had previously retired or who had been obliged by the constitution to vacate office;

24.1.3. who was not entitled to vote on the matter, whether by reason of a conflict of interests or otherwise;

if without:

24.1.4. the vote of that director; and



24.1.5. that director being counted in the quorum;

the decision has been made by a majority of the directors at a quorate meeting.

24.2. Article 24.1 does not permit a director to keep any benefit that may be conferred upon him or her by a resolution of the directors or of a committee of directors if, but for article 24.1, the resolution would have been void, or if the director has not complied with article 22.1.

25. MINUTES

25.1. The directors must keep minutes of all:

25.1.1. appointments of officers made by the directors;

25.1.2. proceedings at meetings of the company;

25.1.3. meetings of the directors and committees of directors including:

(a) the names of the directors present at the meeting;

(b) the decisions made at the meetings; and

(c) where appropriate the reasons for the decisions.

29.2 Minutes shall be taken by a director appointed for that purpose by the directors and the Chairman shall ensure that the minutes are circulated to all directors by suitable electronic means within one week of the meeting or if by other means, within four weeks of the meeting.

26. ACCOUNTS

26.1. The directors must prepare for each financial year accounts as required by the Companies Acts. The accounts must be prepared to show a true and fair view and follow accounting standards issued or adopted by the Accounting Standards Board or its successors and adhere to the recommendations of applicable Statements of Recommended Practice.

26.2. The directors must keep accounting records as required by the Companies Acts.



27. MEANS OF COMMUNICATION TO BE USED

- 27.1. Subject to the articles, anything sent or supplied by or to the company under the articles may be sent or supplied in any way in which the Companies Act 2006 provides for documents or information which are authorised or required by any provision of that Act to be sent or supplied by or to the company.
- 27.2. Subject to the articles, any notice or document to be sent or supplied to a director in connection with the taking of decisions by directors may also be sent or supplied by the means by which that director has asked to be sent or supplied with such notices or documents for the time being.
- 27.3. Any notice to be given to or by any person pursuant to the articles:
- 27.3.1. must be in writing; or
 - 27.3.2. must be given in electronic form.
- 27.4. The company may give any notice to a member either:
- 27.4.1. personally; or
 - 27.4.2. by sending it by post in a prepaid envelope addressed to the member at its registered address; or
 - 27.4.3. by leaving it at the registered address of the member; or
 - 27.4.4. by giving it in electronic form to the member's address.
- 27.5. A member who does not register an address with the company shall not be entitled to receive any notice from the company.
- 27.6. If a duly authorised representative of a member present in person at any meeting of the company the member shall be deemed to have received notice of the meeting and of the purposes for which it was called.
- 27.7. Proof that an envelope containing a notice was properly addressed, prepaid and posted shall be conclusive evidence that the notice was given.



27.8. Proof that an electronic form of notice was given shall be conclusive where the company can demonstrate that it was properly addressed and sent, in accordance with section 1147 of the Companies Act 2006.

27.9. In accordance with section 1147 of the Companies Act 2006 notice shall be deemed to be given:

27.9.1. 48 hours after the envelope containing it was posted; or

27.9.2. in the case of an electronic form of communication, 48 hours after it was sent.

28. INDEMNITY

28.1. The company shall indemnify every director against any liability incurred in successfully defending legal proceedings in that capacity, or in connection with any application in which relief is granted by the Court from liability for negligence, default, or breach of duty or breach of trust in relation to the company.

28.2. In this article a "relevant director" means any director or former director of the company.

29. RULES

29.1. The directors may from time to time make such reasonable and proper rules or bye laws as they may deem necessary or expedient for the proper conduct and management of the company and of the members.

29.2. The bye laws may regulate the following matters but are not restricted to them:

29.2.1. the admission of members of the company and the rights and privileges of such members, and the entrance fees, subscriptions and other fees or payments to be made by members;

29.2.2. the conduct of members of the company in relation to one another, and to the company's employees and volunteers;



29.2.3. the procedure at general meetings and meetings of the directors in so far as such procedure is not regulated by the Companies Acts or by the articles;

29.2.4. generally, all such matters as are commonly the subject matter of company rules.

29.3. The company in general meeting has the power to alter, add to or repeal the rules or bye laws.

29.4. The directors must adopt such means as they think sufficient to bring the rules and bye laws to the notice of members of the company.

29.5. The rules or bye laws shall be binding on all members of the company. No rule or bye law shall be inconsistent with, or shall affect or repeal anything contained in, the articles.

30. DISSOLUTION

30.1. The members of the company may at any time before, and in expectation of, its dissolution resolve that any net assets of the company after all its debts and liabilities have been paid, or provision has been made for them, shall on or before the dissolution of the company be applied or transferred in any of the following ways:

30.1.1. directly for the Objects; or

30.1.2. by transfer to any not for profit company or association or charity for purposes similar to the Objects; or

30.1.3. to any not for profit company or association or charity for use for particular purposes that fall within the Objects.

30.2. Subject to any such resolution of the members of the company, the directors of the company may at any time before and in expectation of its dissolution resolve that any net assets of the company after all its debts and liabilities have been paid, or provision made for them, shall on or before dissolution of the company be applied or transferred:



- 30.2.1. directly for the Objects; or
 - 30.2.2. by transfer to any not for profit company or association or charity for purposes similar to the Objects; or
 - 30.2.3. to any not for profit company or association or charity for use for particular purposes that fall within the Objects.
- 30.3. In no circumstances shall the net assets of the company be paid to or distributed among the members of the company and if no resolution in accordance with article 30.1 is passed by the members or the directors the net assets of the company shall be applied for purposes as directed by the Court.

31. ADOPTION OF BENCHMARKS

- 31.1. The adoption, modification, or retirement of a benchmark shall be effected by the members passing a written resolution requiring a simple majority in accordance with article 12.



2 Company House Incorporation Form

The following forms are the standard forms for incorporating in the United Kingdom.

In these, the two initial members (fields D1/D2/D4: Sparsity SL, represented by the project coordinator; and the scientific director as individual member) sign on the spots marked D3. The personal house addresses of these persons have been blacked out in the deliverable.

There will be no secretary (B1-B4, C1-C5). There will be no Corporate Director (E1-E5), nor share capital (F1-F5), hence all these fields are blank.

In field G1 we find the guarantee amount (£5), and the subscribers, which are the previously mentioned directors.

Our lawyer, Mrs. Christine Goodyear of GBW Law, acts as our agent in this incorporation, therefore she signs the final H2.

It is the intent of the consortium to have GBH Law for the near and mid-term future as our agent, to file the yearly statement to Company House, and also to receive, scan and forward the mail sent to the LDBC company. This service GBH Law can provide for a £500-600 per year.

In addition to that, LDBC company will have to produce yearly financial statements, which can probably be achieved for around £1000 from an accountant (we did not select one yet). These seem to be for the moment the minimal yearly operating cost for the LDBC company. Mentioned costs are limited, and can easily be supported from the fees. We note that these are not the only cost going forward, as LDBC will long-term operate its own website and benchmark development infrastructure and continue to organize physical TUC meetings. Still, LDBC is being designed as a low-cost organization (certainly compared to TPC, which charges member fees of tens of thousands of dollar per year, and a benchmark result submission inclusive auditing cost runs for the same). This low-cost focus is visible in LDBC preferring e.g. electronic meetings and auditing over physical meetings. This is important as the members of LDBC include relatively small companies.

This deliverable was delayed, due to the legal reviewing of various versions of the articles, and a subsequent delay due to the transfer of the EU project budget for legal cost from one partner to the other.

In accordance with
Section 9 of the
Companies Act 2006.

IN01

Application to register a company

A fee is payable with this form.
Please see 'How to pay' on the last page.

What this form is for
You may use this form to register a private or public company.

What this form is NOT for
You cannot use this form to register a limited liability partnership. To do this, please use form LL IN01.

For further information, please refer to our guidance at www.companieshouse.gov.uk

Part 1

Company details

A1

Company name

To check if a company name is available use our WebCheck service and select the 'Company Name Availability Search' option:
www.companieshouse.gov.uk/info

Please show the proposed company name below.

Proposed company name in full **1**

For official use

► Filling in this form
Please complete in typescript or in bold black capitals.

All fields are mandatory unless specified or indicated by *

1 Duplicate names
Duplicate names are not permitted. A list of registered names can be found on our website. There are various rules that may affect your choice of name. More information on this is available in our guidance booklet GP1 at: www.companieshouse.gov.uk

LINKED DATA BENCHMARK COUNCIL

A2

Company name restrictions **2**

Please tick the box only if the proposed company name contains sensitive or restricted words or expressions that require you to seek comments of a government department or other specified body.

☒ I confirm that the proposed company name contains sensitive or restricted words or expressions and that approval, where appropriate, has been sought of a government department or other specified body and I attach a copy of their response.

2 Company name restrictions
A list of sensitive or restricted words or expressions that require consent can be found in our guidance booklet GP1 at: www.companieshouse.gov.uk

A3

Exemption from name ending with 'Limited' or 'Cyfyngedig' **3**

Please tick the box if you wish to apply for exemption from the requirement to have the name ending with 'Limited', 'Cyfyngedig' or permitted alternative.

☒ I confirm that the above proposed company meets the conditions for exemption from the requirement to have a name ending with 'Limited', 'Cyfyngedig' or permitted alternative.

3 Name ending exemption
Only private companies that are limited by guarantee and meet other specific requirements are eligible to apply for this. For more details, please go to our website: www.companieshouse.gov.uk

A4

Company type **4**

Please tick the box that describes the proposed company type and members' liability (only one box must be ticked):

☐ Public limited by shares

☐ Private limited by shares

☒ Private limited by guarantee

☐ Private unlimited with share capital

☐ Private unlimited without share capital

4 Company type
If you are unsure of your company's type, please go to our website: www.companieshouse.gov.uk

IN01

Application to register a company

A5	Situation of registered office ¹	
	Please tick the appropriate box below that describes the situation of the proposed registered office (only one box must be ticked): ☒ England and Wales ☐ Wales ☐ Scotland ☐ Northern Ireland	1 Registered office Every company must have a registered office and this is the address to which the Registrar will send correspondence. For England and Wales companies, the address must be in England or Wales. For Welsh, Scottish or Northern Ireland companies, the address must be in Wales, Scotland or Northern Ireland respectively.
A6	Registered office address ²	
Building name/number Street Post town County/Region Postcode	Please give the registered office address of your company. c/o GBH LAW LIMITED OAK HOUSE, TANSHERE PARK SHACKLEFORD ROAD ELSTEAD SURREY G U 8 6 L B	2 Registered office address You must ensure that the address shown in this section is consistent with the situation indicated in Section A5. You must provide an address in England or Wales for companies to be registered in England and Wales. You must provide an address in Wales, Scotland or Northern Ireland for companies to be registered in Wales, Scotland or Northern Ireland respectively.
A7	Articles of association ³	
Option 1 Option 2 Option 3	Please choose one option only and tick one box only. I wish to adopt one of the following model articles in its entirety. Please tick only one box. ☐ Private limited by shares ☐ Private limited by guarantee ☐ Public company I wish to adopt the following model articles with additional and/or amended provisions. I attach a copy of the additional and/or amended provision(s). Please tick only one box. ☐ Private limited by shares ☐ Private limited by guarantee ☐ Public company ☒ I wish to adopt entirely bespoke articles. I attach a copy of the bespoke articles to this application.	3 For details of which company type can adopt which model articles, please go to our website: www.companieshouse.gov.uk
A8	Restricted company articles ⁴	
	Please tick the box below if the company's articles are restricted. ☐	4 Restricted company articles Restricted company articles are those containing provision for entrenchment. For more details, please go to our website: www.companieshouse.gov.uk

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IN01

Application to register a company

Part 2

Proposed officers

For private companies the appointment of a secretary is optional, however, if you do decide to appoint a company secretary you must provide the relevant details. Public companies are required to appoint at least one secretary.

Private companies must appoint at least one director who is an individual. Public companies must appoint at least two directors, one of which must be an individual.

For a secretary who is an individual, go to Section B1; For a corporate secretary, go to Section C1; For a director who is an individual, go to Section D1; For a corporate director, go to Section E1.

Secretary

B1

Secretary appointments ¹

Please use this section to list all the secretary appointments taken on formation.
For a corporate secretary, complete Sections C1-C5.

Title*	
Full forename(s)	
Surname	
Former name(s) ²	

¹ **Corporate appointments**
For corporate secretary appointments, please complete Section C1-C5 instead of Section B.

Additional appointments
If you wish to appoint more than one secretary, please use the 'Secretary appointments' continuation page.

² **Former name(s)**
Please provide any previous names which have been used for business purposes in the last 20 years. Married women do not need to give former names unless previously used for business purposes.

B2

Secretary's service address ³

Building name/number	
Street	
Post town	
County/Region	
Postcode	
Country	

³ **Service address**
This is the address that will appear on the public record. This does not have to be your usual residential address.

Please state 'The Company's Registered Office' if your service address will be recorded in the proposed company's register of secretaries as the company's registered office.

If you provide your residential address here it will appear on the public record.

B3

Signature ⁴

I consent to act as secretary of the proposed company named in Section A1.

Signature	X
-----------	---

⁴ **Signature**
The person named above consents to act as secretary of the proposed company.

IN01

Application to register a company

Corporate secretary

C1	Corporate secretary appointments ¹	
	Please use this section to list all the corporate secretary appointments taken on formation.	
Name of corporate body/firm		1 Additional appointments If you wish to appoint more than one corporate secretary, please use the 'Corporate secretary appointments' continuation page. Registered or principal address This is the address that will appear on the public record. This address must be a physical location for the delivery of documents. It cannot be a PO box number (unless contained within a full address), DX number or LP (Legal Post in Scotland) number.
Building name/number		
Street		
Post town		
County/Region		
Postcode		
Country		
C2	Location of the registry of the corporate body or firm	
Is the corporate secretary registered within the European Economic Area (EEA)? ► Yes Complete Section C3 only ► No Complete Section C4 only		
C3	EEA companies ²	
	Please give details of the register where the company file is kept (including the relevant state) and the registration number in that register.	2 EEA A full list of countries of the EEA can be found in our guidance: www.companieshouse.gov.uk 3 This is the register mentioned in Article 3 of the First Company Law Directive (68/151/EEC).
Where the company/firm is registered ³		
Registration number		
C4	Non-EEA companies	
	Please give details of the legal form of the corporate body or firm and the law by which it is governed. If applicable, please also give details of the register in which it is entered (including the state) and its registration number in that register.	4 Non-EEA Where you have provided details of the register (including state) where the company or firm is registered, you must also provide its number in that register.
Legal form of the corporate body or firm		
Governing law		
If applicable, where the company/firm is registered ⁴		
Registration number		
C5	Signature ⁵	
	I consent to act as secretary of the proposed company named in Section A1 .	5 Signature The person named above consents to act as corporate secretary of the proposed company.
Signature	Signature  	

IN01

Application to register a company

Director

D1	Director appointments ¹	
	Please use this section to list all the director appointments taken on formation. For a corporate director, complete Sections E1-E5.	
Title*	MR	
Full forename(s)	JOSEP LLUIS	
Surname	LARRIBA PEY	
Former name(s) ²		
Country/State of residence ³	SPAIN	
Nationality	SPANISH	
Date of birth	d 0 d 3 m 0 m 2 y 1 y 9 y 6 y 4	
Business occupation (if any) ⁴	COMPUTER SCIENCE RESEARCHER	
	1 Appointments Private companies must appoint at least one director who is an individual. Public companies must appoint at least two directors, one of which must be an individual. 2 Former name(s) Please provide any previous names which have been used for business purposes in the last 20 years. Married women do not need to give former names unless previously used for business purposes. 3 Country/State of residence This is in respect of your usual residential address as stated in Section D4. 4 Business occupation If you have a business occupation, please enter here. If you do not, please leave blank. Additional appointments If you wish to appoint more than one director, please use the 'Director appointments' continuation page.	
D2	Director's service address ⁵	
	Please complete the service address below. You must also fill in the director's usual residential address in Section D4 .	
Building name/number	THE COMPANY'S REGISTERED OFFICE	
Street		
Post town		
County/Region		
Postcode		
Country		
	5 Service address This is the address that will appear on the public record. This does not have to be your usual residential address. Please state 'The Company's Registered Office' if your service address will be recorded in the proposed company's register of directors as the company's registered office. If you provide your residential address here it will appear on the public record.	
D3	Signature ⁶	
	I consent to act as director of the proposed company named in Section A1 .	
Signature	Signature X X	
	6 Signature The person named above consents to act as director of the proposed company.	

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Application to register a company

X

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Do not cover this barcode

D4

Director's usual residential address ¹

Please complete your usual residential address below.

Building name/number	
Street	
Post town	BARCELONA
County/Region	
Postcode	
Country	SPAIN

¹ New director's usual residential address

Please state 'Same as service address' in this section if your usual residential address is recorded in the company's proposed register of director's residential addresses as 'Same as service address'.

You cannot state 'Same as service address' if your service address has been stated in Section D2 as 'The Company's Registered Office'. You will need to complete the address in full.

This address cannot be a PO Box, DX or LP (Legal Post in Scotland) number.

Section 243 of Companies Act 2006

Section 243 exemption ²

Only tick the box below if you are in the process of applying for, or have been granted, exemption by the Registrar from disclosing your usual residential address to credit reference agencies under section 243 of the Companies Act 2006.

☐

Different postal address:

If you are applying for, or have been granted, a section 243 exemption, please post this whole form to the different postal address below:
The Registrar of Companies, PO Box 4082, Cardiff, CF14 3WE.

Where you are applying for a section 243 exemption with this notice, the application and this form must be posted together.

² If you are currently in the process of applying for, or have been granted, a section 243 exemption, you may wish to check you have not entered your usual residential address in Section D2 as this will appear on the public record.

X

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IN01

Application to register a company

Director

D1	Director appointments ¹		
Please use this section to list all the director appointments taken on formation. For a corporate director, complete Sections E1-E5.			
Title*	MR		
Full forename(s)	PETER ALEXANDER		
Surname	BONCZ		
Former name(s) ²			
Country/State of residence ³	THE NETHERLANDS		
Nationality	DUTCH		
Date of birth	d0 d4 m0 m9 y1 y9 y7 y0		
Business occupation (if any) ⁴	COMPUTER SCIENCE RESEARCHER		
		1 Appointments Private companies must appoint at least one director who is an individual. Public companies must appoint at least two directors, one of which must be an individual. 2 Former name(s) Please provide any previous names which have been used for business purposes in the last 20 years. Married women do not need to give former names unless previously used for business purposes. 3 Country/State of residence This is in respect of your usual residential address as stated in Section D4. 4 Business occupation If you have a business occupation, please enter here. If you do not, please leave blank. Additional appointments If you wish to appoint more than one director, please use the 'Director appointments' continuation page.	
D2	Director's service address ⁵		
Please complete the service address below. You must also fill in the director's usual residential address in Section D4 .			
Building name/number			
Street			
Post town			
County/Region			
Postcode			
Country			
		5 Service address This is the address that will appear on the public record. This does not have to be your usual residential address. Please state 'The Company's Registered Office' if your service address will be recorded in the proposed company's register of directors as the company's registered office. If you provide your residential address here it will appear on the public record.	
D3	Signature ⁶		
I consent to act as director of the proposed company named in Section A1 .			
Signature	Signature ✕ ✕		6 Signature The person named above consents to act as director of the proposed company.

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Application to register a company

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D4

Director's usual residential address ¹

Please complete your usual residential address below.

Building name/number	123456789 straat 123456789
Street	123456789 AMSTERDAM
Post town	
County/Region	
Postcode	1234 5678
Country	THE NETHERLANDS

¹ New director's usual residential address

Please state 'Same as service address' in this section if your usual residential address is recorded in the company's proposed register of director's residential addresses as 'Same as service address'.

You cannot state 'Same as service address' if your service address has been stated in section D2 as 'The Company's Registered Office'. You will need to complete the address in full.

This address cannot be a PO Box, DX or LP (Legal Post in Scotland) number.

Section 243 of Companies Act 2006

Section 243 exemption ²

Only tick the box below if you are in the process of applying for, or have been granted, exemption by the Registrar from disclosing your usual residential address to credit reference agencies under section 243 of the Companies Act 2006.

☐

Different postal address:

If you are applying for, or have been granted, a section 243 exemption, please post this whole form to the different postal address below:
The Registrar of Companies, PO Box 4082, Cardiff, CF14 3WE.

Where you are applying for a section 243 exemption with this notice, the application and this form must be posted together.

² If you are currently in the process of applying for, or have been granted, a section 243 exemption, you may wish to check you have not entered your usual residential address in Section D2 as this will appear on the public record.

X

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IN01

Application to register a company

Corporate director

E1	Corporate director appointments ¹	
	Please use this section to list all the corporate directors taken on formation.	
Name of corporate body or firm		
Building name/number		
Street		
Post town		
County/Region		
Postcode		
Country		
	¹ Additional appointments If you wish to appoint more than one corporate director, please use the 'Corporate director appointments' continuation page. Registered or principal address This is the address that will appear on the public record. This address must be a physical location for the delivery of documents. It cannot be a PO box number (unless contained within a full address), DX number or LP (Legal Post in Scotland) number.	
E2	Location of the registry of the corporate body or firm	
	Is the corporate director registered within the European Economic Area (EEA)?	
	► Yes Complete Section E3 only ► No Complete Section E4 only	
E3	EEA companies ²	
	Please give details of the register where the company file is kept (including the relevant state) and the registration number in that register.	
Where the company/firm is registered ³		
Registration number		
	² EEA A full list of countries of the EEA can be found in our guidance: www.companieshouse.gov.uk ³ This is the register mentioned in Article 3 of the First Company Law Directive (68/151/EEC).	
E4	Non-EEA companies	
	Please give details of the legal form of the corporate body or firm and the law by which it is governed. If applicable, please also give details of the register in which it is entered (including the state) and its registration number in that register.	
Legal form of the corporate body or firm		
Governing law		
If applicable, where the company/firm is registered ⁴		
If applicable, the registration number		
	⁴ Non-EEA Where you have provided details of the register (including state) where the company or firm is registered, you must also provide its number in that register.	
E5	Signature ⁵	
	I consent to act as director of the proposed company named in Section A1 .	
Signature	Signature ✕ ✕	
	⁵ Signature The person named above consents to act as corporate director of the proposed company.	

IN01

Application to register a company

Part 3

Statement of capital

Does your company have share capital?

- **Yes** Complete the sections below.
 ► **No** Go to **Part 4 (Statement of guarantee)**.

F1

Share capital in pound sterling (£)

Please complete the table below to show each class of shares held in pound sterling.

If all your issued capital is in sterling, only complete **Section F1** and then go to **Section F4**.

Class of shares (E.g. Ordinary/Preference etc.)	Amount paid up on each share 1	Amount (if any) unpaid on each share 1	Number of shares 2	Aggregate nominal value 3
				£
				£
				£
				£
Totals				£

F2

Share capital in other currencies

Please complete the table below to show any class of shares held in other currencies.

Please complete a separate table for each currency.

Currency				
Class of shares (E.g. Ordinary/Preference etc.)	Amount paid up on each share 1	Amount (if any) unpaid on each share 1	Number of shares 2	Aggregate nominal value 3
Totals				

Currency				
Class of shares (E.g. Ordinary/Preference etc.)	Amount paid up on each share 1	Amount (if any) unpaid on each share 1	Number of shares 2	Aggregate nominal value 3
Totals				

F3

Totals

Please give the total number of shares and total aggregate nominal value of issued share capital.

Total number of shares

Total aggregate
nominal value 4

4 **Total aggregate nominal value**
 Please list total aggregate values in
 different currencies separately. For
 example: £100 + €100 + \$10 etc.

1 Including both the nominal value and any
share premium.3 Number of shares issued multiplied by
nominal value of each share.

2 Total number of issued shares in this class.

Continuation Pages

Please use a Statement of Capital continuation
page if necessary.

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Application to register a company

F4**Statement of capital** (Prescribed particulars of rights attached to shares)

Please give the prescribed particulars of rights attached to shares for each class of share shown in the statement of capital share tables in **Sections F1 and F2**.

Class of share	
Prescribed particulars	

1

1 Prescribed particulars of rights attached to shares

The particulars are:

- a. particulars of any voting rights, including rights that arise only in certain circumstances;
- b. particulars of any rights, as respects dividends, to participate in a distribution;
- c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and
- d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder and any terms or conditions relating to redemption of these shares.

A separate table must be used for each class of share.

Continuation pages

Please use the next page or a 'Statement of Capital (Prescribed particulars of rights attached to shares)' continuation page if necessary.

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Application to register a company

Class of share		
Prescribed particulars		1 Prescribed particulars of rights attached to shares The particulars are: a. particulars of any voting rights, including rights that arise only in certain circumstances; b. particulars of any rights, as respects dividends, to participate in a distribution; c. particulars of any rights, as respects capital, to participate in a distribution (including on winding up); and d. whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder and any terms or conditions relating to redemption of these shares. A separate table must be used for each class of share. Continuation pages Please use a 'Statement of capital (Prescribed particulars of rights attached to shares)' continuation page if necessary.

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Application to register a company

F5

Initial shareholdings

This section should only be completed by companies incorporating with share capital.
Please complete the details below for each subscriber.

The addresses will appear on the public record. These do not need to be the subscribers' usual residential address.

Initial shareholdings

Please list the company's subscribers in alphabetical order.

Please use an 'Initial shareholdings' continuation page if necessary.

Subscriber's details	Class of share	Number of shares	Currency	Nominal value of each share	Amount (if any) unpaid	Amount paid
Name						
Address						
Name						
Address						
Name						
Address						
Name						
Address						
Name						
Address						

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Application to register a company

Part 4 Statement of guarantee

Is your company limited by guarantee?

- **Yes** Complete the sections below.
- **No** Go to **Part 5** (Statement of compliance).

G1**Subscribers**

Please complete this section if you are a subscriber of a company limited by guarantee. The following statement is being made by each and every person named below.

I confirm that if the company is wound up while I am a member, or within one year after I cease to be a member, I will contribute to the assets of the company by such amount as may be required for:

- payment of debts and liabilities of the company contracted before I cease to be a member;
- payment of costs, charges and expenses of winding up, and;
- adjustment of the rights of the contributors among ourselves, not exceeding the specified amount below.

1 Name

Please use capital letters.

2 Address

The addresses in this section will appear on the public record. They do not have to be the subscribers' usual residential address.

3 Amount guaranteed

Any valid currency is permitted.

Continuation pages

Please use a 'Subscribers' continuation page if necessary.

Subscriber's details

Forename(s) 1	SPARSITY SL
Surname 1	
Address 2	COMTE GUELL 13 BARCELONA, SPAIN
Postcode	0 8 0 2 8
Amount guaranteed 3	£5

Subscriber's details

Forename(s) 1	PETER ALEXANDER
Surname 1	BONCZ
Address 2	CWI, SCIENCE PARK 123, AMSTERDAM
Postcode	1 0 9 8 X G
Amount guaranteed 3	£5

Subscriber's details

Forename(s) 1	
Surname 1	
Address 2	
Postcode	
Amount guaranteed 3	

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Application to register a company

Subscriber's details		1 Name Please use capital letters. 2 Address The addresses in this section will appear on the public record. They do not have to be the subscribers' usual residential address. 3 Amount guaranteed Any valid currency is permitted. Continuation pages Please use a 'Subscribers' continuation page if necessary.
Forename(s) 1		
Surname 1		
Address 2		
Postcode		
Amount guaranteed 3		
Subscriber's details		
Forename(s) 1		
Surname 1		
Address 2		
Postcode		
Amount guaranteed 3		
Subscriber's details		
Forename(s) 1		
Surname 1		
Address 2		
Postcode		
Amount guaranteed 3		
Subscriber's details		
Forename(s) 1		
Surname 1		
Address 2		
Postcode		
Amount guaranteed 3		
Subscriber's details		
Forename(s) 1		
Surname 1		
Address 2		
Postcode		
Amount guaranteed 3		

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IN01

Application to register a company

Part 5

Statement of compliance

This section must be completed by all companies.

Is the application by an agent on behalf of all the subscribers?

- **No** Go to **Section H1** (Statement of compliance delivered by the subscribers).
- **Yes** Go to **Section H2** (Statement of compliance delivered by an agent).

H1

Statement of compliance delivered by the subscribers ¹

Please complete this section if the application is not delivered by an agent for the subscribers of the memorandum of association.

I confirm that the requirements of the Companies Act 2006 as to registration have been complied with.

¹ **Statement of compliance delivered by the subscribers**
Every subscriber to the memorandum of association must sign the statement of compliance.

Subscriber's signature

Signature

X

X

Subscriber's signature

Signature

X

X

Subscriber's signature

Signature

X

X

Subscriber's signature

Signature

X

X

Subscriber's signature

Signature

X

X

Subscriber's signature

Signature

X

X

Subscriber's signature

Signature

X

X

Subscriber's signature

Signature

X

X

IN01

Application to register a company

Subscriber's signature	Signature X	X	Continuation pages Please use a 'Statement of compliance delivered by the subscribers' continuation page if more subscribers need to sign.
Subscriber's signature	Signature X	X	
Subscriber's signature	Signature X	X	
Subscriber's signature	Signature X	X	

H2	Statement of compliance delivered by an agent	
	Please complete this section if this application is delivered by an agent for the subscribers to the memorandum of association.	
Agent's name	GBH LAW LIMITED	
Building name/number	Oak House	
Street	Tanshire Park	
	Shackleford Road	
Post town	Elstead	
County/Region	Surrey	
Postcode	G U 8 6 L B	
Country		
	I confirm that the requirements of the Companies Act 2006 as to registration have been complied with.	
Agent's signature	Signature X	X

3 Recommendation Letter

Company House in the United Kingdom imposes certain restriction on the use of certain terms in the names of new companies.

It turns out that “Council” as appearing in “Linked Data Benchmark Council” is such a word. In order to allow incorporation, the founding members must send in a recommendation letter of an official institution or government justifying the use of this term (in addition to other evidence).

In this case, a project officer the EU itself graciously provided a recommendation letter, which was accepted as suffieicnt grounds for using Council in the name by Company House.



EUROPEAN COMMISSION

Directorate-General for Communications Networks, Content and Technology

Luxembourg, 1 August 2013
DG CNECT/G3/SB

The Registrar of Companies
Companies House
Crown WayCardiff
CF14 3UZ
United Kingdom

Dear Sir

Formation of Linked Data Benchmark Council

We refer to the application lodged with this letter to form a company limited by guarantee with the name **Linked Data Benchmark Council**. We understand that the use of the word "Council" is sensitive within the regulations.

We confirm that the formation of the company is part of a project funded by the European Union to develop credible industry benchmarks for graph and RDF database systems which will enable users of information technology to better compare graph and RDF technology products and competing technologies.

The company will be a representative body of organisations and individuals involved in graph and RDF data management technology to develop benchmarks and exchange information about benchmarks for the benefit of the industry and users of the technology. To our knowledge, there is currently no other organisation operating to fulfil the objectives for which the company is to be set up.

We trust that this letter will be sufficient evidence to enable the company to be registered with the name proposed.

Yours faithfully

Stefano Bertolo
Project Officer

Contact:

Stefano Bertolo, Telephone: +352 4301-37435, stefano.bertolo@ec.europa.eu

Commission européenne/Europese Commissie, 1049 Bruxelles/Brussel, BELGIQUE/BELGIË - Tel. +32 22991111
stefano.bertolo@ec.europa.eu

Ref. Ares(2013)2937913 - 28/08/2013

**Companies House**

STEFANO BERTOLO
COMMISSION EUROPEENNE / EUROPESE
COMMISSIE
1049 BRUXELLES / BRUSSEL
BELGIUM

New Companies Section
Companies House
Crown Way
Cardiff
CF14 3UZ
enquiries@companies-house.gov.uk
Telephone +44(0) 303 1234 500
Fax +44(0) 29 20380857
DX 33050 Cardiff
www.companieshouse.gov.uk

Your Ref
Our Ref New Comps/RD
Date 21/08/2013

Dear Mr Bertolo

Thank you for your letter which we received on 12/08/13.

I am pleased to confirm that the letter of support you submitted for the use of the proposed name "Linked Data Benchmark Council" is sufficient and the use of the name has been authorised.

There does not appear to have been an application attached to the letter you submitted. You must complete a form IN01, memorandum and articles of association. The fee for these documents is £40 (£100 for a same day service).

When submitting your application, please include a copy of your original letter along with a copy of this letter authorising the proposed name.

Yours faithfully

Richard Dixon
New Companies Section

Companies House is an Executive Agency of the Department for Business, Innovation and Skills (BIS)



4 Conclusion

This deliverable has documented the incorporation of the legal entity for the LDBC non-profit organization, as a UK company limited by guarantee.

By December 2013, we expect to have all companies from the EU project join as members.

In the first half of 2014, we hope to finish the by-laws of the company, which will set detailed procedures and guidelines for the development and evaluation of LDBC benchmarks, as well as auditing practices and dispute resolution.

Over the course of 2014, more organizations, external to the EU project LDBC, are expected to join as members.